

The M.P. Councillors (Non-Payment of Tax) Rules, 1963

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State of Madhya Pradesh - Act

The M.P. Councillors (Non-Payment of Tax) Rules, 1963

MADHYA PRADESH

India

The M.P. Councillors (Non-Payment of Tax) Rules, 1963

Rule THE-M-P-COUNCILLORS-NON-PAYMENT-OF-TAX-RULES-1963 of 1963

Published on 29 April 1963

Commenced on 29 April 1963

[This is the version of this document from 29 April 1963.]

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The M.P. Councillors (Non-Payment of Tax) Rules, 1963

Published vide Notification No. 67-U-18, dated 29th April, 1963, M.P. Rajpatra, Part 2, dated 24-5-1963

In exercise of the powers conferred by sub-section (1) of Section 433 read with sub-section (3) of Section 26 of the Madhya Pradesh Municipal Corporation Act, 1956 (

No. 23 of 1956

), and in supersession of all rules previously made on the subject, the State Government hereby makes the following rules, the same having been previously published as required by sub-section (1) of Section 133 of the said act, namely-

1.

Short title.

- These rules may be called The Madhya Pradesh Councillors (Non-payment of Tax) Rules, 1963.

2.

Definitions.

- In these rules unless the context otherwise requires-

(a)

"Act" means the Madhya Pradesh Municipal Corporation Act, 1956.

(b)

"Corporation" means the Municipal Corporation of a city in Madhya Pradesh.

(c)

"Councillor" includes the Mayor and Deputy Mayor.

3.

Contents of the list.

- The list referred to in clause (a) of sub-section (1) of Section 26 of the Act, shall contain information for the previous calendar quarter and shall be in the following form-

Form

S. No.

Name of Councillor

Arrears due with name of tax

Date of accrual of arrears

Note of action taken mentioning also the date on which notice required by Section 26 (1) (b) was issued

Date of service of notice issued under Section 26

(1) (b)

Remarks

(1)

(2)

(3)

(4)

(5)

(6)

(7)

4.

Information to the Government and publication of names.

- If any Councillor fails to pay the arrears of any tax due to him to the Corporation within the period specified in sub-section (2) of Section 26 of the Act, and this office becomes vacant, the Municipal Corporation shall intimate the State Government of the fact and the State Government shall publish the name of such Councillor in the Gazette.

5.

Form of Certificate.

- The certificate under sub-section (2) of Section 26 shall be granted by the Municipal Commissioner in the following form-

Certified that..... Councillor of the Corporation of the..... who was disqualified under sub-section (2) of Section 26 is owing to his failure to pay arrears to taxes due by him to the Corporation, has paid of all such arrears on..... 20.....

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